

TENTATIVE RULING(S) FOR May 7, 2026

Department S14 – Judge Winston Keh

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If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2519000

ESPINOZA V CITY OF RIALTO

TENTATIVE RULING(S):

PROCEDURAL POSTURE

On July 1, 2025, Plaintiff Maria Espinoza filed a form complaint against Defendants the City of Rialto, the City of Fontana, San Bernardino County, the State of California, the California Department of Transportation, John Doe, and Does 1-50, alleging causes of action for premises liability (dangerous condition on public property), motor vehicle, and general negligence.

On September 5, 2025, Plaintiff filed a Request for Dismissal as to the City of Rialto, without prejudice. On September 15, 2025, Plaintiff filed a Request for Dismissal as to the State of California and the California Department of Transportation, without prejudice.

After a demurrer to the complaint was sustained with leave to amend, Plaintiff filed the operative First Amended Complaint (FAC) on January 21, 2026.

In the operative FAC, which is also a form complaint, Plaintiff now names the City of Fontana, San Bernardino County, John Doe, and Does 1-50 as the Defendants. She alleges the same causes of action.

With respect to the first cause of action for premises liability (dangerous condition of public property), Plaintiff alleges that on or about July 8, 2024, the County and Fontana had actual and constructive notice of the existence of the dangerous condition in sufficient time prior to the injury to have corrected it and said condition was created by employees of the defendant public entities. More specifically, Plaintiff alleges that at or near the intersection of Santa Ana Avenue and Cedar Avenue in Bloomington, the traffic signals were inoperative, dangerous, defective, unregulated, in a state of disrepair and/or malfunctioning in that they were flashing red on multiple occasions in the days before the subject incident without proper synchronization, creating a physical deficiency that exposed users to an increased risk of collision from uncontrolled and/or confused traffic flow. It is alleged the Defendants negligently and/or recklessly maintained, managed, operated, controlled and safeguarded the premises. Moreover, it is alleged Defendants had actual or constructive notice of the malfunction but failed to repair the signals, install temporary stop signs, barricade the area, and/or provide adequate warnings, which rendered the intersection dangerous and resulting in serious bodily harm to Plaintiff.

Plaintiff alleges that as she was operating her vehicle with due care at the subject intersection, John Doe [subsequently identified as Greg Rendon] failed to come to a stop or yield to oncoming traffic as required and collided with Plaintiff. Plaintiff alleges this claim is brought pursuant to Government code sections 835 and 815.2. Plaintiff also alleges that Fontana was served with a claim for damages pursuant to Government Code section 911.2 on January 8, 2025, which has not been rejected. The County was also served with a claim on January 8, 2025, which was rejected on February 19, 2025.

On February 26, 2026, the County filed the instant demurrer to the FAC and the declaration of counsel, Maurice S. Kane.

Plaintiff opposes, and the County replies.

Meet and Confer

Under Code of Civil Procedure section 430.41, subdivision (a), before filing a demurrer, the objecting party shall meet and confer with the opposing party for the purpose of determining whether an agreement can be reached to resolve the objections to the pleading. The parties should meet and confer at least five days before the responsive pleading is due. The meet and confer shall be in person, by telephone, or by video conference. (Code Civ. Proc., § 430.41, subd. (a).)

In support of the demurrer, counsel for the County, Maurice S. Kane submits a declaration. He attests that he emailed Plaintiff's counsel and attached a detailed meet and confer letter and then phoned after not having received a response. He left a detailed message, which was also not returned. (Kane Decl. ¶¶ 4-6; Exhs. C, D.) Though the parties have not met and conferred, it is clear that defense counsel made multiple attempts. The Court is considering imposing monetary sanctions against Plaintiff's counsel for not meeting and conferring and will address this issue during the hearing of this motion.

Merits of the Demurrer

The County demurs to Plaintiff's first cause of action pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f) for failing to state facts sufficient to constitute a cause of action, for failing to comply with the Court's previous ruling requiring the pleading of a physical characteristic of the roadway that constitutes a dangerous condition, because the allegations are uncertain, and on the grounds the County is immune from liability pursuant to Government Code sections 830.4 and 830.8.

First Cause of Action: Premises Liability (Dangerous Condition on Public Property). Government Code section 835 sets out the exclusive conditions under which a public entity is liable for injuries caused by a dangerous condition of public property. (See *Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1121-1132.)

To state a cause of action against a public entity under Government Code section 835, a plaintiff must plead: (1) a dangerous condition existed on the public property at the time of the injury; (2)

the condition proximately caused the injury; (3) the condition created a reasonably foreseeable risk of the kind of injury sustained; and (4) the public entity had actual or constructive notice of the dangerous condition of the property in sufficient time to have taken measures to protect against it. (Gov. Code, § 835; *Brenner v. City of El Cajon* (2003) 113 Cal.App.4th 434, 439.) Government Code section 830 defines a “[d]angerous condition” as “a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property is used with due care in a manner in which it is reasonably foreseeable that it will be used.” Property is not “dangerous” within the meaning of the statutory scheme if the property is safe when used with due care and the risk of harm is created only when foreseeable users fail to exercise due care. (Gov. Code, § 830; *Id.*) Even though it is foreseeable that persons may use public property without due care, a public entity may not be held liable for failing to take precautions to protect such persons. (*Fuller v. State of California* (1975) 51 Cal.App.3d 926, 939.)

The limited and statutory nature of governmental liability mandates that claims against public entities be specifically pleaded. (*Susman v. City of Los Angeles* (1969) 269 Cal.App.2d 803, 809.) Accordingly, a claim alleging a dangerous condition may not rely on generalized allegations. (*Mittenhuber v. City of Redondo Beach* (1983) 142 Cal.App.3d 1, 5.) The complaint must specify in what manner the condition constituted a dangerous condition. (*People ex rel. Dept. of Transportation v. Sup. Ct.* (1992) 5 Cal.App.4th 1480, 1485-86.)

The County argues that Plaintiff again fails to allege any physical characteristic of County property that would constitute a “dangerous condition” under Government Code section 835. The County relies again on *Cerna v. City of Oakland* (2008) 161 Cal.App.4th 1340. “The existence of a dangerous condition is ordinarily a question of fact but “can be decided as a matter of law if reasonable minds can come to only one conclusion.”” (*Id.* at p. 1347.) More to the point: “A plaintiff’s allegations, and ultimately the evidence, must establish a *physical* deficiency in the property itself. A dangerous condition exists when public property “is physically damaged, deteriorated, or defective in such a way as to foreseeably endanger those using the property itself,” or possesses physical characteristics in its design, location, features or relationship to its

surroundings that endanger users.” (*Id.* at pp. 1347-1348, emphasis in the original, citations omitted.) The County argues that this demonstrates why the pleadings here fail: Plaintiff fails to state the physical characteristic that rendered the property dangerous. The County argues the flashing red traffic lights described in the FAC do not suffice.

While the County refers to the CHP report (to show the lights were operative), that goes beyond the four corners of the FAC and was not the subject of judicial notice; however, the County’s argument continues. The County argues that even if the red lights were inoperative that is not a basis for the claim because malfunctioning red lights do not constitute a physical characteristic of the property itself. The County argues that structurally, the intersection does not change whether the lights are operative or inoperative.

The County continues to argue, correctly, that third-party conduct is also not enough to allege a dangerous condition. “But it is insufficient to show only harmful third-party conduct, like the conduct of a motorist. “[T]hird party conduct, by itself, unrelated to the condition of the property, does not constitute a “dangerous condition” for which a public entity may be held liable.” There must be a defect in the physical condition of the property and that defect must have some causal relationship to the third-party conduct that injures the plaintiff. “[P]ublic liability lies under [Government Code] section 835 only when a feature of the public property has ‘increased or intensified’ the danger to users from third party conduct.”” (*Id.* at p. 1348, citations omitted.) The County argues here that the other driver and Plaintiff herself are the cause of the collision, rather than any physical characteristic of the property.

More importantly, perhaps, the County notes that flashing red lights alone do not constitute a dangerous condition as a matter of law. Vehicle Code section 21457, subdivision (a) provides that: “When a red lens is illuminated with rapid intermittent flashes, a driver shall stop at a clearly marked limit line, but if none, before entering the crosswalk on the near side of the intersection, or if none, then at the point nearest the intersecting roadway where the driver has a view of approaching traffic on the intersecting roadway before entering it, and the driver may proceed subject to the rules applicable after making a stop at a stop sign.” In other words, this code section, by law, equates the flashing red lights to a stop sign. Vehicle code section 21800,

subdivision (d) also determines the rules of the road with respect to four-way stops: “(d)(1) The driver of any vehicle approaching an intersection which has official traffic control signals that are inoperative shall stop at the intersection, and may proceed with caution when it is safe to do so.

[¶] (2) When two vehicles enter an intersection from different highways at the same time, and the official traffic control signals for the intersection are inoperative, the driver of the vehicle on the left shall yield the right-of-way to the vehicle on his or her immediate right, except that the driver of any vehicle on a terminating highway shall yield the right-of-way to any vehicle on the intersecting continuing highway.”

“A public entity does not create a dangerous condition on its property “merely because of the failure to provide regulatory traffic control signals, stop signs, yield right-of-way signs, or speed restriction signs” (§ 830.4.) If, on the other hand, the government installs traffic signals and invites the public to justifiably rely on them, liability will attach if the signals malfunction, confusing or misleading motorists, and causing an accident to occur. The reasoning behind this rule is that the government creates a dangerous condition and a trap when it operates traffic signals that, for example, direct motorists to “go” in all four directions of an intersection simultaneously, with predictable results. If the government turns off traffic signals entirely to avoid confusion, liability does not attach. “When the [traffic] lights were turned off, their defective condition could no longer mislead or misdirect the injured party.”” (*Chowdhury v. City of Los Angeles* (1995) 38 Cal.App.4th 1187, 1194–1195, citations omitted (*Chowdhury*)). This illustrates that if the signals malfunction, for example two opposing lights being green and causing an accident, then there is a liability. However, flashing red alone is equated to a stop sign, and reasonable minds can only come to one conclusion that that alone does not constitute a dangerous condition.

The FAC explicitly alleges the lights were flashing red. But it is also alleged that they were “sporadically flashing red and at other times not flashing at all.” It is clear that flashing red alone is insufficient. As the *Chowdhury* case demonstrates, an entity may turn the lights off completely and that is not a dangerous condition—thus, not flashing at all, is also not a dangerous condition. Next, it is also alleged that the accident was caused “due to the inoperable, inconsistent,

sporadic and/or unsynchronized traffic lights”. However, as stated above, this cause of action must be pleaded with specificity. Plaintiff essentially alleges flashing red lights (not a dangerous condition), no lights (not a dangerous condition), “and/or” unsynchronized traffic lights.

Unsynchronized traffic lights, depending on how they are flashing, could be a dangerous condition as stated above. But the use of the “and/or” means that there is no specific allegation the lights were unsynchronized. In addition, because this cause of action must be specifically pleaded, Plaintiff must allege how the lights were unsynchronized because the way it is alleged, it could very well be the flashing red lights or no lights at all, which again, do not constitute a dangerous condition. In this sense, the cause of action is also uncertain.

The following analysis from *Chowdhury*, supra, is helpful: “Under the circumstances, motorists approaching the intersection were bound not by the City’s inoperative light, but by the provisions of the Vehicle Code, which effectively transform an inoperative signal light into a stop sign. Once the signals failed, the City could reasonably foresee that motorists using due care would obey the provisions of the Vehicle Code and make a full stop before proceeding when it was safe to do so. The City cannot be charged with foreseeing that a motorist will recklessly disobey traffic laws and speed through an intersection without heed to its inoperative traffic lights any more than it can be charged with foreseeing that irresponsible drivers will race at 100 miles per hour down a highway or drive the wrong way down a one-way street, in violation of the traffic laws.” (*Id.* at pp. 1195-1196, citation and internal footnote omitted.) “As one court has observed, any property can be dangerous if used in a sufficiently improper manner. For this reason, a public entity is only required to provide roads that are safe for reasonably foreseeable careful use. “If [] it can be shown that the property is safe when used with due care and that a risk of harm is created only when foreseeable users fail to exercise due care, then such property is not ‘dangerous’ within the meaning of section 830, subdivision (a).”” (*Id.* at p. 1196, citation omitted.) “A four-way stop is not an inherently dangerous condition when used with due care by the general public. The only risk of harm was from a motorist who failed to exercise due care by obeying the de facto stop signs. The City is not liable for that conduct.” (*Ibid.*) Given the lack of specificity in the FAC, the FAC can be read to allege a four-way stop for which the County is not

liable.

Finally, the County argues that they have statutory immunity in light of these allegations under Government Code sections 830.4 and 830.8. Section 830.4 provides that “A condition is not a dangerous condition within the meaning of this chapter merely because of the failure to provide regulatory traffic control signals, stop signs, yield right-of-way signs, or speed restriction signs, as described by the Vehicle Code, or distinctive roadway markings as described in Section 21460 of the Vehicle Code.” (Gov. Code, § 830.4.) And, section 830.8 provides that “Neither a public entity nor a public employee is liable under this chapter for an injury caused by the failure to provide traffic or warning signals, signs, markings or devices described in the Vehicle Code. Nothing in this section exonerates a public entity or public employee from liability for injury proximately caused by such failure if a signal, sign, marking or device (other than one described in Section 830.4) was necessary to warn of a dangerous condition which endangered the safe movement of traffic and which would not be reasonably apparent to, and would not have been anticipated by, a person exercising due care.” (Gov. Code, § 830.8.) Again, the allegations in the FAC only provide allegations that would fall under those for which the County is not liable. In the Opposition, Plaintiff states the dangerous condition was inoperative, unregulated, and defective traffic controls. (See Opp. at 5:13-14.) However, inoperative lights alone as shown above, are not a dangerous condition, nor are unregulated lights if that means they are flashing red as alleged, nor are defective lights if they are flashing red. This allegation lacks specificity, and, in the Opposition, Plaintiff does not account for the use of “and/or” in the FAC, which results in no direct allegation the lights were not synchronized. Plaintiff goes on to explain that the County failed to barricade the area or provided warning signs. But Plaintiff has not alleged a dangerous condition that would require such signs or barricades. In fact, the Opposition relies greatly on this allegation of synchronization, except that the FAC alleges the traffic signals were inoperative and/or malfunctioning such that there were flashing red lights, without synchronization. This means the lights could have simply been inoperative, resulting in a four-way stop “or” lacked synchronization. The lack of a direct allegation here results in a failure to state a cause of action. In addition, even if Plaintiff alleged a lack of synchronization, Plaintiff

needs to plead the cause with specificity and state how the lights were not synchronized. As the FAC currently reads, it appears the lack of synchronization is simply that there were flashing red lights rather than a dangerous condition (for example opposing green lights).

Based on the analysis set forth above, the County's Demurrer to the FAC is well-taken and the Court therefore SUSTAINS the demurrer without leave to amend.